

and partial epilepsy. He was a resident of Buenavista Group Homes on choking risk procedures when he swallowed a one-inch ball. The incident caused a rupture in his esophagus, resulting in permanent digestive injuries necessitating a permanent G-Tube.

Defendants have offered combined settlement in the amount of \$929,999.98. There are deductions as follows: (1) \$99,787.59 for medical expenses to Medi-Cal; (2) \$17,783.54 for costs; (3) \$10,000 for expenses for the Special Needs Trust; and (4) \$362,945.74 for attorneys' fees (39% of the recovery). The remainder is therefore \$439,482.11, to be placed in his Special Needs Trust.

The parties additionally seek findings relating to the need for and establishment of the Special Needs Trust.

The Court notes that the settlement is substantial—although the damages alleged were certainly substantial as well. The Court is carefully examining the attorneys' fees. The Court acknowledges that the fee agreement permitted fees of 45% of the recovery once litigation has commenced and that the requested amount represents a 6% reduction from that contract. In the Court's experience, 45% is a very high amount for such an early trigger. On the other hand, this case is not new and counsel did have to do some litigation, including taking four depositions, engaging consulting experts, and reviewing medical experts. The Court believes that the fee percentage of 45% would not be consistent with the criteria for a reasonable attorney's fee under CRC 7.955(b). In this particular case, given the strong result, the work done, and the reduction to below 40%, the Court finds that the fee is reasonable.

Ruling

The Court finds that (1) Jose Reynoso has a disability that substantially impairs his ability to provide for his own care or custody and constitutes a substantial handicap; (2) Jose Reynoso is likely to have special needs that will not be met without this trust; and (3) the money being transferred to the trust does not exceed the amount that appears reasonably necessary to meet Jose Reynoso's special needs. The Court hereby establishes the Jose Reynoso Irrevocable Special Needs Trust. The Court authorizes and directs Ma. De Lourdes Hidalgo to execute the Jose Reynoso Irrevocable Special Needs Trust as guardian ad litem for Jose Reynoso and as trustee of the Jose Renoso Irrevocable Special Needs Trust.

After careful examination of the Petition, declarations, and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise lodged on December 17, 2025.

2. 9:00 AM CASE NUMBER: C24-02709
CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES**
FILED BY: YEFENAU, PAVEL
TENTATIVE RULING:

Defendant Pavel Yefenau brings this Motion to Compel Further Responses to Special Interrogatories served on Plaintiff Maria Seredkina. The Court received no timely opposition

Background

Pursuant to the declaration from Defendant Plaintiff served responses to Special Interrogatories (after stipulated extensions) on August 28, 2025, with verifications on August 29, 2025. Defendant began the meet and confer process on September 23, 2025, and although Plaintiff promised amended responses, none were served before Defendant's deadline for this motion. Defendant seeks further responses to several interrogatories. Apparently one day prior to filing the opposition, and five and a half months after this Motion was filed, Plaintiff finally served amended discovery responses. Plaintiff acknowledges that the initial responses were deficient, but opposes the Motion on two grounds: (1) Defendant's Separate Statement is purportedly procedurally deficient; and (2) three of the responses are Code Compliant.

Analysis

Format of Separate Statement

Although Plaintiff is correct that definitions should be provided where appropriate in the Separate Statement, most of the definitions that were omitted were to easily defined terms. The remainder have been cured by the Reply Separate Statement. The Court will consider this Motion.

Special Interrogatory No. 10

Defendant sought a specific date and Plaintiff provided a month. Plaintiff's amendment clarifies that no more specificity is possible. This is satisfactory. Defendant appears to agree, as this Interrogatory is not discussed in the Reply Separate Statement.

Special Interrogatory No. 11

Defendant sought *information* Plaintiff believes Defendant accessed on her devices, and Plaintiff provided general information. Plaintiff amended answer provides the requisite specificity. While Defendant wants a list, that is not required.

Special Interrogatory No. 12

Defendant sought information as to how Plaintiff knows that Defendant accessed certain information. Plaintiff's amended response provides more specificity but still does not refer to specific documents. The Court will compel Plaintiff to specifically identify documents and sources of information, instead of the general references to "discovery responses in the related family law proceeding." Otherwise, this answer is compliant.

Special Interrogatory No. 13

Defendant sought information Plaintiff believes Defendant accessed on her phone. Plaintiff's amended response does not identify any information. It must be provided to the extent known.

Special Interrogatory No. 14

Defendant sought information Plaintiff believes Defendant accessed on other devices. Plaintiff's amended response appears to provide the requisite specificity. Defendant appears to agree, as this Interrogatory is not discussed in the Reply Separate Statement.

Special Interrogatory No.15

Defendant sought factual basis for a statement. Plaintiff's amended response provides more specificity but still does not refer to specific documents. The Court will compel Plaintiff to specifically identify documents and sources of information, instead of the general references to "discovery responses in the related family law proceeding."

Special Interrogatory No. 16

Defendant sought factual basis for a statement. Plaintiff's amended response appears to provide the requisite specificity. Defendant appears to agree, as this Interrogatory is not discussed in the Reply Separate Statement.

Special Interrogatory No. 17

Defendant appears to seek clarification as to whether the sole information Plaintiff has with respect to Defendant's access to her personal and work devices is the narrative in the Amended Response. Plaintiff must explain whether this is the entire basis for her allegation in Paragraph 10 or whether there is additional information.

Special Interrogatory No. 18

Defendant asked for identification of specific information, to which Plaintiff responded generally. The Court will compel Plaintiff to specifically identify documents.

Special Interrogatory No. 19

Defendant asked for identification of specific information, to which Plaintiff responded generally. Plaintiff's amended response is close to providing the requisite specificity. It appears that a Protective Order resolves this dispute, and there is one in place, so Plaintiff can supplement with protected information, subject to that Order.

Special Interrogatory No. 20

Defendant asked for identification of specific information, to which Plaintiff responded generally. Plaintiff's amended response is close to providing the requisite specificity. It appears that a Protective Order resolves this dispute, and there is one in place, so Plaintiff can supplement with protected information, subject to that Order.

Special Interrogatory No. 23

Defendant asked for identification of specific information, to which Plaintiff responded generally. Plaintiff must provide more specific answers. The amended response is virtually identical to the original response. Defendant did not address this Interrogatory in the Reply Separate Statement.

Special Interrogatory No. 27

Defendant asked for identification of specific information, to which Plaintiff responded generally and referred to a prior Interrogatory Response. Plaintiff must provide more specific, stand-alone answers. Defendant did not address this Interrogatory in the Reply Separate Statement.

Special Interrogatory No. 29

Defendant asked for identification of specific information, to which Plaintiff responded generally. The Court will compel Plaintiff to specifically identify documents and sources of information, instead of the general references to “discovery in the related family law matter.”

Special Interrogatory No. 33

Defendant sought specific dates and Plaintiff provided months. Plaintiff’s amended response appears to provide the requisite specificity. Defendant did not address this Interrogatory in the Reply Separate Statement.

Sanctions

Defendant also seeks sanctions in the amount of \$2,910.00. Plaintiff has amended responses and claims that renders the motion moot, and on that basis believes the request for sanctions should be denied. California Rule of Court 3.1348(a) provides: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.” Sanctions here are appropriate. Counsel’s explanation for waiting until one week before the hearing to amend responses is not satisfying. It not only makes the moving party do extra work, it places an extra burden upon the Court (both the judge and staff). These were not substantial amendments and they did not require six months of wait. The Court will grant the request for sanctions payable to counsel for Defendant within 30 days of this order.

3. 9:00 AM CASE NUMBER: C24-02709
CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES**
FILED BY: YEFENAU, PAVEL
TENTATIVE RULING:

Defendant Pavel Yefenau brings this Motion to Compel Further Responses to Form Interrogatories served on Plaintiff Maria Seredkina. Plaintiff Seredkina filed a brief opposition.

Background

Pursuant to the declaration from Defendant—facts to which Plaintiff explicitly concedes—Plaintiff served responses to Form Interrogatories (after stipulated extensions) on August 28, 2025, with verifications on August 29, 2025. Defendant began the meet and confer process on September 23, 2025, and although Plaintiff promised amended responses, none were served before Defendant’s